HH- 563-26

HCH -119-26

HARJEN AUTO HUB (PVT) LIMITED

Versus

AHMED LAMBAT

And

COURAGE MUZEMBI

And

MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 22, 27, 28 and 29 July 2026.

COURT APPLICATION

L. ZIRO, for the applicant

P. NYEVERAI, for the 1st respondent

CHIRAWU-MUGOMBA J: This matter was initially placed before the court as an urgent chamber application for a *mandament van spolie* and an interdict. The matter was adjudged not to be urgent and was struck off the roll. It thus proceeded as an ordinary court application. The first respondent filed heads of argument two days after the *dies induciae* and Mr. *Ziro* was not opposed to the upliftment of the bar operating against the first respondent upon application. Accordingly, the bar was uplifted. I commend him for his stance as more often than not; we are dealing with opposed chamber applications for upliftment of bar where it is clear that

the application ought not to have been opposed. Relying on *Blue Rangers Estates (pvt) Limited vs Muduviri and anor, 2009(1) ZLR 368(S),* he further submitted that the applicant was abandoning the relief sought of spoliation and would only seek that of an interdict. An amended draft order was thus filed as follows:-

TERMS OF THE FINAL ORDER SOUGHT

That you should show cause to this Honourable Court why a Final Order should not be made in the following terms:

1. Pending finalization of Estate Late Harmotti Peter Keith Makoni DR 42/26 or expiration of the lease between the parties, whichever occurs first, the 1st and 2nd Respondent and anyone claiming right and entitlement through them be and are hereby interdicted, restrained and prohibited from unlawfully barring the Applicant, its agents and employees from accessing its office at 11 Southfield Road Mount Pleasant ,Harare and both Respondents and anyone claiming right and entitlement through them shall not sale, alienate or make use of Applicant's office property, premises, its motor vehicle and Launch Diagnostic machine. 2.
2. The 1st and 2nd Respondents shall pay costs of suit on a higher scale jointly and severally, the one pay paying the other to be absolved.

I will now deal with the matter at hand for an interdict. The deponent to the founding affidavit, one Jennipher Makoni avers that she is a director of the applicant. The other director, one Harmotti Peter Keith Makoni (the deceased) or (Peter) passed away on the 10th of August 2026. She states that the deceased, acting on behalf of the applicant entered into a lease agreement with the first respondent with regards to an immovable property known as 11 Southfield Road, Mount Pleasant, Harare (the premises). This lease was concluded on the 1st of July 2025 and was to run for a period of twenty-four months. The first respondent unlawfully cancelled the lease agreement his reason being that the demise of the deceased brought it to

an end. A notice was sent to the deponent by the first respondent. The arrangement was that the first respondent was involved in the business of the applicant to the extent of sharing profits. The first respondent has repossessed the applicant's office furniture, motor vehicle and vehicle diagnostic machine and locked out applicant. The first respondent has teamed up with the second respondent who is a former employee of the applicant and he has also allowed his brother to make use of the premises without consent from applicant. Except for an outstanding amount of USD 750, the applicant is up to date with rentals. The deponent avers that the applicant meets the requirements for the grant of an interdict. In support of the application, the following are attached. (1) Certificate of incorporation of the applicant; (2) notice of an edict meeting from the third respondent ; (3) certificate of death for the deceased; (4) CR6 form and other documents from the Companies Registry office ; (5) updated agreement between the first respondent and the deceased effective first of July 2025 (6) contract of employment between the second respondent and applicant and several other employment contracts; and (6) letter from the applicant to the second respondent on expiry of the employment contract.

The application is opposed by the first respondent who avers as follows. That the applicant has no *locus standi* given that the business agreement was entered into between the deceased and the first respondent with no involvement of the applicant. The first respondent needlessly attaches the agreement that the applicant has already attached instead of merely referring to it. Further that the deponent Jennipher Makoni does not possess letters of administration for the estate of the

deceased. The business arrangement terminated with the death of the deceased. Rentals are not up to date. No property has been taken away from the applicant and no dispossession from using the premises has occurred. The applicant does not satisfy the requirements of an interdict as claimed.

In the answering affidavit, it is noted that the applicant attached annexures without leave of the court. This includes letters of administration. The applicant insists that the deceased was acting on behalf of the applicant when entering into the lease agreement.

The applicant's heads of argument begin with a quote by one Ulplan and this is not necessary. A quote is not a legal argument. Specifically on the interdict, the applicant submits that it has met the requirements as enunciated in *Setlogelo vs Setlogelo,* 1914 AD, 221. The applicant has a clear right since the lease is still in force. At the hearing, Mr. *Ziro* made the following submissions. That in the first respondent's opposing affidavit and heads of argument, it appears that there is no dispute. This is because there is denial of resorting to self-help and this is a concession. He submitted that the deceased and the first respondent were in a part lease and part business arrangement. The deceased operated a workshop at the premises for motor vehicle services. When the deceased was operating on the premises, there were employees working for the applicant. The attached company documents reflect that the directors of the applicant were the deceased and Jennipher Makoni. The agreement at hand is a lease agreement between the applicant and the first respondent. The termination letter by the first respondent to Jennipher

Makoni states shows that he is aware that he was dealing with the applicant as a company. The deceased passed away on the 10th of August 2025 and the letter of termination is dated the 12th of December 2025. In between that period, payments were made to the first respondent by the applicant. These were acknowledged. This shows that there was a relationship between the applicant and the first respondent.

Per contra, the first respondent submits that the applicant has no *locus standi,* since it was not a party to the agreement. At the hearing, Ms. *Nyeverai* submitted that there was no contract between the applicant and the first respondent. The fact that the name of the applicant on the agreement is in brackets is neither here nor there. The applicant has not sued Torque Lab but has cited the first respondent in his personal capacity. The termination letter related to the fact that Jennifer Makoni was in charge of the assets of the deceased. The applicant has not made any submissions on the requirements for the granting of an interdict. It is not correct that the first respondent made concessions as alleged. The first respondent only responded to the allegations of lock out. He followed due process by termination of the agreement formally. On post death receipt of rentals, she submitted that there was a business arrangement where both parties were supposed to contribute to rentals. At the demise of the deceased, Jennipher Makoni took over and she was alerted that the deceased owed rentals prior to his demise.

In rebuttal, Mr. *Jiro* submitted that contrary to the assertion, it is the first respondent who has not addressed the interdict application in the heads of argument. The applicant relies on its heads of argument that have

addressed the requirements for an interdict. The receipt of rentals post death shows that there was a relationship. It should be noted that the applicant operated from the same premises post death and this shows that there was a relationship. On the draft order referring to the deceased estate, he submitted that, this referred to property accruing to the deceased as stated in the agreement. He submitted further that reference to the deceased estate can be expunged and that only reference to the interdict be left intact.

It is common cause that the deceased and the first respondent had an agreement and that they were operating from the same premises. The legal question that arises and that will establish whether or not the applicant meets the requirements of an interdict is this- was the agreement that was signed by the deceased and the first respondent on the first of July 2025 essentially between applicant and first respondent or between the deceased and the first respondent?

It is trite that a company is a separate legal persona as enunciated in the time -honoured decision in *Salomon. Vs. Salomon and co. Ltd,* [1897] AC 22 and codified in the Companies and Other Business Entities Act , [Chapter *24:31*]. I note that the applicant has attached company documents and shareholding structure. That is neither here nor there since the existence of applicant as a company is not contested. What is critical is the legal issue that I have identified.

The agreement clearly states that it is an updated one entered into by and between Ahmed Lambat and Peter Makoni. The primary tenant is identified as the first respondent and in brackets the name (Torque Lab) is

indicated, The operator is identified as the deceased and in brackets (Harjen Auto Hub). The argument by the applicant is that this indicates that the agreement was between applicant and the first respondent. The question that arises as submitted by Ms. *Nyeverai* is that if the contention by the applicant is that the agreement was between it and the first respondent, given that the name Torque Lab appears, why was that party not cited and instead the first respondent was cited by name?

A perusal of the agreement shows that throughout, the names that were used were those of the deceased and the first respondent with no reference to the respective companies save for the company names appearing once in brackets. Even the signing did not indicate that the two were signing on behalf of the respective companies. That is why the first respondent avers that the applicant lacks *locus standi* since it was never a party to the agreement. The fact that the names appear in brackets and everything else in the names of the deceased and the first respondent brings to the fore the issue of contractual ambiguity. In such an instance, the courts have always applied the cardinal rules of contract interpretation. In *casu,* what was the intention of the parties? The principle of *ex visceribus actus* thus applies. See generally *Estate of the Later Jean Moir Hedley vs. Angwa City Investments (pvt) Limited and ors,* HH-41-13 on the application of the principle in statutory interpretation. In my view, the inclusion of the names of the companies in brackets is merely descriptive rather than denoting that the deceased was acting on behalf of the applicant. As I have already stated, the agreement itself is replete with reference to the individual names and not those in brackets. It also shows

that the two persons, that is , the deceased and the first respondent had a very personal relationship as borne out by references to individual names in the agreement. I take note also of the fact that the agreement was to be extended after twenty-four months due to the good relationship between the deceased and the first respondent. The language used is, 'due to our'. Nothing can show a stronger personal relationship than that. The applicant has argued that it had employment contracts with employees including the second respondent who has in my view been unnecessarily dragged into this litigation. A letter of termination is included relating to the second respondent. In my view, that cannot by any stretch of imagination be taken to denote that the agreement was between applicant and first respondent. These employees had nothing to do with the first respondent or indeed Torque Lab which I have already stated has not been cited.

I am in agreement with the first respondent's contention that the applicant was not a party to the agreement. I am further fortified in my view by the signing of the agreement. If indeed the deceased was acting as an agent of the applicant, this would have been clearly stated or appearing under the signatures. Instead, what appears are the names of the deceased and the first respondent with no indication that they were acting in a representative capacity. Balancing the submissions of the applicant and those of the first respondent, the scale tips in favour of the latter that there was no agreement between the applicant and the first respondent. It is trite that an entity that is not a party to a contract cannot seek enforcement of the terms of such- the doctrine of privity of contract. This provides that contractual remedies are enforced only by or against parties

to a contract, and not third parties, since contracts only create personal rights. Third parties cannot sue even if they would benefit by the performance of the contract. See Innocent Maja *The Law of Contract in Zimbabwe* p 27.

The applicant has made much of the termination letter from the first respondent to Jennipher Makoni dated the 12th of December 2025. The letter specifically states that it is being addressed to Jennipher Makoni in her capacity as a representative of the deceased. It also states that the agreement was structured around the active involvement of the deceased. Further, it states that the payment received relates to the running of the business during the life time of the deceased. The first respondent was very clear that the payments did not mean that he had entered into any agreement with any new party. The argument by the applicant therefore that the termination reflected that it had a lease agreement with the first respondent does not hold water.

Perhaps the greatest factor that tilts the balance in favour of the first respondent, lies in the amended draft order. Before I deal with that let me state that it is quite shocking that after the urgent chamber application proceeded as an ordinary court application, the applicant still saw it fit to seek essentially a show cause order instead of final relief. The order sought reflects that even in the understanding of the applicant, the relationship between it and the first respondent was non-existent. What was in existence is the personal relationship between the deceased and the first respondent. It is trite that a deceased estate as cited through an executor is a separate legal *persona*. The demise of Peter, if indeed the

agreement was between the applicant and the first respondent would not have affected the running of the applicant so why include this in the draft order?. It is noted that the applicant seeks an order that is dependant on the winding up of the deceased estate of Peter. If indeed, Peter's estate had anything to do with the agreement, perhaps the issue of the furniture that is indicated in the agreement as accruing to Peter, then the executor can take legal action. That is the reason why Mr. *Ziro* struggled to respond when the court asked him to address the inclusion of the estate of the late Peter in the draft order if indeed the relationship was between the applicant and the first respondent. In my view, even the applicant through its director Jennipher Makoni is aware and cognisant of the fact that the agreement was between the deceased and the first respondent hence the first paragraph of the draft order. Strangely, the other part of the order states either the winding up or the termination of the lease whichever happens first. I have already noted the extension of the lease post the twenty -four months is based on a strong personal relationship. The question that arises is when does the lease expire according to the applicant? It certainly cannot be in perpetuity. This also boosts the first respondent's contention that the agreement was personal between the deceased and the first respondent. It ended with the death of Peter.

In an application for a final interdict as the one sought by the applicant, what must be established firstly is a clear right, secondly an actual or a reasonably apprehended injury and, thirdly, absence of any other remedy see *Setlogelo (supra)*. The second and third requirements are dependent on the establishment of a clear right. The applicant not

being a party to the agreement has no clear right to speak of and the matter ends there. It cannot seek an interdict or be granted one.

On costs, it is trite that these follow the cause. Accordingly, the first respondent is entitled to its costs on the ordinary scale.

DISPOSITION

The applicant had no agreement with the first respondent as it claims otherwise it would have cited Torque Lab and not the first respondent by name. Both Torque Lab and the applicants' names were bracketed in the agreement and it would follow that if applicant contends that the agreement was between it and the first respondent, it ought to have cited Torque Lab. The applicant was not a party to the agreement as reflected also in the inclusion throughout the agreement of the names of the deceased and the first respondent. The two parties also signed in their individual capacities and not as representatives. The inclusion of the deceased estate of the late Peter in the draft order shows that even the applicant is aware that the agreement was between the deceased and the first respondent. The applicant, not being a party to the agreement has no clear right. Accordingly, the applicant's claim has no merit.

IT IS ORDERED THAT:-

1. The application be and is hereby dismissed.
2. The applicant shall pay costs.

Takainidisa Law Chambers, applicants' legal practitioners

HH- 563-26

HCH -119-26

Mavhiringidze and Mashanyare Legal Practice, first respondent's legal practitioners.